In the Matter of **AL-MIRA DAVIS**,
DOB: June 23, 2011, a Child.

Filed by: AshLe' Penn, Mother
Appearing by Special Appearance
In Propria Persona

Case No.: 25JU04261

SUPPLEMENTAL MEMORANDUM IN SUPPORT OF MOTHER'S WRITTEN OBJECTION TO CONTINUATION OF PROCEEDINGS: STATUTORY COMPLIANCE DEFICIT; MISREPRESENTATIONS TO THE COURT; IN-HOME PLACEMENT CONCESSION; AND THE FIT-PARENT PRESUMPTION

SPECIAL APPEARANCE NOTICE. This filing constitutes a special appearance only and shall not be construed as a general appearance, consent to jurisdiction, or waiver of any objection to personal jurisdiction, subject matter jurisdiction, service of process, or notice previously raised or raised herein. *See* § 419B.803(1)(a); § 109.717.

I Purpose

This memorandum supplements the Notice of Special Appearance and Written Objection filed this date. It addresses four matters the court must resolve before any order continuing ODHS custody can lawfully issue: (A) the statutory compliance deficit across ten months; (B) specific misrepresentations made to this court that remain uncorrected on the record; (C) the agency's in-home placement concession and what it requires under ORS § 419B.185(1) and ORS § 419B.331; and (D) the fit-parent presumption and what the agency's current position actually demands.

Factual assertions carry support labels. = established by a document in the record. = established by a recorded transcript. Argument appears only in the Analysis section.

II Procedural Posture

On September 6, 2025 at 5:40 PM, ODHS Supervisor Heather Kitto sent Mother a text message stating that ODHS was prepared to release Al-mira to Mother. Nineteen minutes later, at 5:59 PM, Kitto reversed that decision based on a statement. That statement has since been acknowledged as retracted.

Mother was not physically present at the hospital that evening. At Mother's direction, her uncle, Marcus Taylor — a blood relative known to Al-mira — traveled to the hospital before

protective custody was formally exercised. Marcus Taylor was present at the hospital prior to ODHS's removal decision.

Prior to this proceeding, an ODHS worker conducted an interview of Mother's children inside Mother's home for more than two hours. Mother was present and permitted the interview. ODHS therefore had direct, documented access to Mother's home prior to any dispute about home entry.

On September 8, 2025, a CPS worker represented to this court that Mother had refused a safety plan. No safety plan was offered to Mother before October 1, 2025 — twenty-five days after removal.

Mother has not been served with a summons or petition in compliance with ORS § 419B.812. The first reference to service in any communication directed to Mother occurred on October 14, 2025 — thirty-six days after the statutory deadline. On December 8, 2025, Milne confirmed on a recorded call that service had not been completed. ODHS used Mother's email address for delivery of the safety plan and all case communications throughout this proceeding, but did not use it for service.

Records request Confirmation ID #36508 was submitted December 22, 2025. It has not been answered.

In the most recent recorded call approximately two weeks before this hearing, Milne stated the existing safety plan will be revised; the replacement plan will not measure any conduct of Mother's; the sole condition will be consent to announced and unannounced home entry; and the revised plan would be delivered by end of month. The revised plan has not been delivered.

As of this filing, ODHS has not provided Mother with services, a visitation plan, visits, a case plan, a parental capacity assessment, referrals, a response to the records request, or any articulation of specific parental conduct underlying this proceeding.

III Analysis

A ORS § 419B.914 — The Factual Predicate Does Not Exist

ORS § 419B.914 authorizes the court to proceed without a parent only upon a specific finding that the parent cannot be located after reasonable efforts. *DHS v. W.A.C.*, 263 Or App 382 (2014). No such finding has been made. The factual predicate for it does not exist.

ODHS was in continuous communication with Mother by text, telephone, and email throughout the entire period it later characterized as an inability to effectuate service. An ODHS worker conducted a two-hour interview inside Mother's home. Mother sent her uncle to the hospital before removal. Mother responded to every agency contact. Mother appeared in every proceeding through written filings. The narrative that Mother was unavailable is foreclosed by the agency's own conduct.

B The Removal Predicate and the Petition Are Not the Same Document

The basis on which ODHS invoked emergency protective custody on September 6, 2025 was a statement acknowledged as retracted. The petition filed in connection with the September 8, 2025 shelter hearing does not allege that statement as the jurisdictional basis.

The compelling-circumstances threshold for protective custody without a court order under ORS § 419B.150 was either satisfied on September 6, 2025, or it was not. That determination does not improve with time. Additionally, the reasonable-efforts requirement under ORS § 419B.340 and the services requirement under ORS § 419B.343(1)(a) must be rationally related to the basis of jurisdiction stated in the *petition*. If the removal predicate and the petition's jurisdictional basis are different events, then the entire services and reasonable-efforts framework has operated without a coherent anchor.

C ODHS Entered the Home and Now Claims It Cannot

Before this proceeding, an ODHS worker conducted a two-hour interview inside Mother's home. Mother was present and permitted it. That is the evidentiary record of Mother's relationship to state access to her home.

Mother's current position — requiring lawful authority for ongoing, unannounced, warrant-free entry after protective custody is being contested — is not a change from prior non-cooperation. It is the Fourth Amendment. *Payton v. New York*, 445 U.S. 573, 585 (1980); *Calabretta v. Floyd*, 189 F.3d 808, 815 (9th Cir. 1999). A safety plan whose sole operative term is warrantless entry consent, untethered to any identified safety concern, is not a safety plan under ORS § 419B.150 or OAR 413-015-0415.

D The Shelter Hearing Misrepresentation Remains Uncorrected

The CPS worker's September 8, 2025 representation that Mother refused a safety plan was false. One cannot refuse what has not been offered. *Mooney v. Holohan*, 294 U.S. 103, 112 (1935): due process forbids the state from obtaining a judgment through deliberate deception. The shelter order was entered on the basis of a false statement. It has never been corrected. Every subsequent order rests on the uncorrected predicate.

E The Statutory Compliance Deficit

Requirement	Authority	Deadline	Record
Service of summons & petition	ORS § 419B.812	Oct. 8, 2025	First attempt Oct. 14, 2025 (36 days late; unauthorized method).
Discovery	ORS § 419B.305(2); § 419B.881(2)(a)(A)	Oct. 8, 2025	Records request ID #36508 submitted December 22, 2025 has not been answered. Mother has been denied access to the case file.
Jurisdictional hearing	ORS § 419B.305(1)	Nov. 7, 2025	No hearing conducted with Mother participating. No good-cause continuance finding.
Case plan	ORS § 419B.343; 42 U.S.C. § 675	Nov. 5, 2025	No case plan has been provided to Mother. Mother has been denied access to the case file and cannot confirm whether one exists.
Written reasonable-efforts findings	ORS § 419B.340(2)	Each hearing	No such findings have been produced to Mother. Mother has been denied access to the case file and cannot confirm what, if anything, the record contains.
Visitation plan	ORS § 419B.337(3)	Upon placement	No visitation plan has been provided to Mother. Zero visits have occurred in ten months.
Services rationally related to jurisdiction	ORS § 419B.343(1)(a)	Upon placement	No services, referrals, or parental capacity assessment have been communicated to Mother.

Requirement	Authority	Deadline	Record
Individualized efforts as to Mother	*DHS v. T.S.*, 267 Or App 301; *DHS v. J.F.D.*, 255 Or App 742	Life of case	No individualized contact, plan, or service directed at Mother.

DHS v. T.S., 267 Or App 301 (2014): the court analyzes efforts over the life of the case. The life of this case applied to the table above yields no documented reasonable effort directed at Mother.

F The In-Home Placement Concession

ODHS has proposed an in-home safety plan. ORS § 419B.185(1) requires the court to consider whether Al-mira can be maintained safely at home. The agency has answered that question affirmatively. The only condition it attaches is warrantless entry consent, which is not a lawful condition for the reasons stated in Section III.C above. Remove the unlawful condition and what remains is the agency's own assessment: Al-mira can go home.

ORS § 419B.331 is the correct disposition. The court chose ORS § 419B.337 ODHS custody at the shelter hearing without finding that ORS § 419B.331 relative placement with protective supervision was insufficient. No such finding has been communicated to Mother, and Mother has been denied access to the record that would confirm or deny its existence. The court may grant ODHS temporary legal custody under ORS § 419B.809(5) even if the order provides for in-home placement, preserving ODHS party status under ORS § 419B.875(1)(a)(G).

G The Fit-Parent Presumption

A fit parent is presumed to act in the best interests of the child. *Troxel v. Granville*, 530 U.S. 57, 68 (2000). The state cannot override that presumption without establishing parental unfitness through a constitutionally adequate process. *DHS v. S.J.M.*, 364 Or 37, 53, 450 P3d 980 (2019). Mother has not been served with a petition and has been denied access to the case file. She therefore cannot represent what the petition alleges. What she can represent is what she has never been told: no specific parental conduct has been identified to her across ten months and six recorded demands. No parental capacity assessment has been communicated to her, and none has been offered.

What the agency is asking the court to find is that Mother's exercise of the Fourth

Amendment — her refusal to consent to warrantless, unannounced home entry — constitutes a danger to Al-mira. A parent's constitutionally protected refusal to consent to warrantless search is not evidence of parental unfitness. It is the exercise of a right guaranteed by the Fourth and Fourteenth Amendments. Characterizing it as a basis for continued separation is retaliation for the exercise of those rights, and it is the structural predicate for a parallel § 1983 claim. Further, consent to warrantless home entry is not a condition this court has authority to impose.

The uncooperative-parent exception is foreclosed. *J.C.*, 258 Or App at 337. No court order requiring Mother to complete any service has ever been communicated to her. Mother has declined no court-ordered service.

H The Written Findings the Court Is Required To Make

Mother requests that any order continuing ODHS custody include the following specific written findings required by ORS § 419B.340(2) and ORS § 419B.449(3)(a) and the court comply with the statutory mandate that parents of children involved in juvenile dependency have a statutory entitlement to receive copies of the records related to the proceeding by disclosing the records Mother has previously requested from this court:

(1) What preventive efforts ODHS made before removal to avoid removing Al-mira from Mother on September 6, 2025, and why further efforts could not have prevented the separation — given that Marcus Taylor, a mitigating relative, was present at the hospital before removal was exercised.

(2) What reunification efforts ODHS made rationally related to the identified basis of jurisdiction under ORS § 419B.343(1)(a).

(3) Why continued substitute care is necessary given that ODHS has failed to provide any identification of conduct from Mother that authorizes the state's interference and given that ODHS has now made mother aware of its intention to initiate a proposed in-home safety plan — constituting the agency's own finding that in-home placement is feasible.

(4) The expected timetable for Al-mira's return, which ORS § 419B.476 and the ASFA twelve-month clock require.

(5) What diligent efforts ODHS made to place with relatives, given that Al-mira was placed with Mother's relatives at Mother's direction and that Marcus Taylor was present before removal.

If the court enters an order without those findings, it is reversible on its face. *DHS v. T.S.*, 267 Or App 301 (2014).

IV Requested Relief

Mother requests the Court:

1. Identify on the record the specific parental conduct this proceeding is premised upon. The court cannot authorize continued separation without this identification. The agency has not provided it in ten months.

2. If the agency cannot answer that question today, dismiss this proceeding under ORS § 419B.100 and ORS § 419B.150 for failure of the jurisdictional predicate, or set an immediate order-to-show-cause hearing toward that end.

3. Return Al-mira to Mother's legal custody immediately. The agency has conceded in-home placement is feasible. There is no lawful basis for continued separation as ODHS invoked emergency protective custody and subsequently failed to justify the use of such an extreme remedy by failing to plead the basis for this invocation in the petition.

4. Order that Mother's contact with Al-mira be restored immediately. Any restriction placed on Mother's contact with AL-mira has been premised either on information the agency will not be able to substantiate, misrepresented or is speculating with regard to. The court could not have determined the best interests of Al-mira over Mother as the agency has failed to demonstrate that mother is an unfit parent. Until there is a finding that she is unfit, she is presumed to be acting within the best interest of her child. This court is required to return Al-mira to her Mother. ORS § 419B.337(3) and ORS § 419B.090(3) require this immediately.

5. Order production of the complete case file to Mother within five business days. ORS § 419B.875(2)(a) and ORS § 419A.255 impose this obligation unconditionally. Legislation did not condition this entitlement to records on any in-person condition the court has previously applied.

6. If this court enters any order continuing ODHS custody, that order must contain the mandatory written findings required by ORS § 419B.340(2) and ORS § 419B.449(3)(a). Without those findings the order is not lawfully entered and is reversible on its face.

7. State on the record whether any ORS § 419B.914 finding authorizing this proceeding to continue without Mother has ever been made. Mother has been denied access to the record and cannot verify this. The court can.

Dated: June 29, 2026

/s

AshLe' Penn, Mother
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Mother expressly preserves all objections to personal jurisdiction, subject matter jurisdiction, service of process, venue, and notice. This communication constitutes a special appearance only.

Certificate of Service. A true copy transmitted by electronic mail to: DAVID.MILNE@odhs.oregon.gov; Sonya.Faulkner@odhs.oregon.gov; and AAG of record, this date.